spondents that their activities had to comply with any applicable regulations and could not exceed the scope of the licenses provided to them. See, *e. g.*, *id.*, at 570–572 (emphasizing additional restrictions on cruises); *id.*, at 869–875 (cautionary letter issued by OFAC). Even so, as the United States explained at argument, "[t]o the extent that Respondents received assurances from appropriate government officials that what they were doing was lawful and authorized," holding them liable for that conduct could "raise due process concerns." Tr. of Oral Arg. 57–58.

As neither the infinite-recovery issue nor the lawful-travel issue was fairly included within the question presented, the Court appropriately does not address either one here. See this Court's Rule 14.1(a). The Court also correctly expresses no view as to other issues unaddressed by the Eleventh Circuit, such as respondents' argument that petitioner's concession was nonexclusive and limited to cargo services, Brief for Respondents 34, and respondents' argument that the Commission's certification violates due process or the Seventh Amendment, *id.*, at 40–42. To the extent any of these or other issues remain and are properly preserved, the Eleventh Circuit should address them in the first instance on remand.

Page Proof Pending Publication

JUSTICE KAGAN, dissenting.

Today the Court misconstrues the Cuban Liberty and Democratic Solidarity Act to allow plaintiffs to recover for trafficking in property that was not theirs. Title III of that Act provides that "any person" that "traffics in property which was confiscated by the Cuban Government on or after January 1, 1959, shall be liable to any United States national who owns the claim to such property." 22 U. S. C. §6082(a)(1)(A). The majority holds that because four commercial cruise lines used docks in the Port of Havana between 2016 and 2019, they can be held liable to Havana Docks Corporation, a U. S. company that built, operated, and once

held a property interest in those docks. That may seem sensible at first blush. But there is a problem: The docks are not "property which was confiscated by the Cuban Government" within the meaning of Title III. Why? Because the docks belonged to the Cuban Government—not Havana Docks—all along. What Havana Docks owned was only a property interest allowing it to use those docks for a specified time. And that time-limited interest expired in 2004—more than a decade before the cruise lines ever used the docks.

The key to getting this case right is understanding the nature of the property interest that Havana Docks once held in the docks. In 1905, the Cuban Government granted Compañia del Puerto a 50-year "usufructuary concession" so that it could build and then operate docks at the Port of Havana. See 119 F. 4th 1276, 1278, 1281 (CA11 2024). As the majority explains, a "usufruct" is a "right to use, enjoy, or profit from another's property" (here, Cuba's property in the Port), and a "concession" is a "privilege granted by the government" (here, the Cuban Government). *Ante*, at 240. So the deal struck was this: Compañia del Puerto would build docks for Cuba at the Port and, in exchange, Cuba would let the company operate those docks for a limited time. Later, that usufructuary concession was assigned to Havana Docks and extended to 99 years, meaning that it would expire in 2004. So Havana Docks' property interest in the docks, like its predecessor's, was a time-limited one. Before 2004, Havana Docks had a right to make use of the docks, even though they belonged to Cuba; after 2004, the company had no right to anything. You might think of Havana Docks as a renter with a lease set to expire in 2004.

Page Proof Pending Publication

Everyone agrees that Havana Docks did not get all it was promised. That is because in 1960, 44 years before the concession was to expire, Cuba issued a decree nationalizing Havana Docks' assets and sent armed agents to physically occupy the docks. Those actions "prematurely destroyed

Havana Docks' concession" and, "by extension, its ability to benefit from the docks." *Ante*, at 241. The Foreign Claims Settlement Commission confirmed as much, finding that Cuba had seized from Havana Docks a concession for the "operation of wharves and warehouses in the harbor of Havana," which was "to expire in the year 2004," as well as associated "equipment, furniture and fixtures." App. to Pet. for Cert. 138a, 141a. The Commission thus certified about $9 million in losses, plus six percent annual interest. Cuba has never compensated Havana Docks for that harm.

But the question in this case is not whether Cuba should pay Havana Docks for depriving it of 44 years of its concession; the question is instead whether cruise lines using the docks twelve years after the concession's expiration date are liable to Havana Docks under Title III. And the answer to that question is no. Recall what the statute says: "[A]ny person" that "traffics in *property which was confiscated* by the Cuban Government on or after January 1, 1959, shall be liable to any United States national who owns the claim to such property." §6082(a)(1)(A) (emphasis added). The "property which was confiscated" from Havana Docks is a time-limited concession. We know that is the "property which was confiscated" because that is the only property Havana Docks ever owned—and thus the only property Cuba could have confiscated from it. So to hold the cruise lines liable, Havana Docks must show that they "traffic[ked] in" its time-limited concession. Had the cruise lines used the docks before 2004, Havana Docks would have a good argument that they did so. But the cruise lines did not use the docks until 2016—years after Havana Docks' concession was scheduled to expire. Given that fact, the cruise lines did not "traffic in" the "property which was confiscated" from Havana Docks and so are not liable to it under Title III.

The Court reaches the opposite conclusion because it believes that the "property which was confiscated" in this case includes the physical docks themselves. See *ante*, at 11.

Case Proof Pending Publication

The majority believes that not because it thinks the physical docks ever belonged to Havana Docks. On the contrary, the majority acknowledges that Havana Docks' sole "property interest was time-limited and set to expire in 2004." *Ante*, at 240. But as the majority sees it, when Title III says "property which was confiscated," it means not just the property interest that was actually confiscated from the plaintiff (here, the time-limited concession), but also "the physical property in which the plaintiff had an interest" (here, the physical docks). *Ante*, at 246, 247–248. There are three related problems with that theory of the case.

First, it misreads the statute Congress wrote. Congress could have imposed liability on "any person" that "traffics in property *in which a United States national held an interest* which was confiscated." If so, the majority's result would follow. But that is not what Title III says. Instead, the statute imposes liability on "any person" that "traffics in property which was confiscated," period. § 6082(a)(1)(A). So, where the only "property" confiscated from the plaintiff is an intangible property interest, the defendant is liable only if he has trafficked in *that* interest. Trafficking in the underlying physical thing is not enough, because doing so is not trafficking in the "property which was confiscated." Of course, the majority is right that, by defining "property" to include both physical things and intangible interests, the Act "makes clear" that liability can be imposed for trafficking in either. *Ante*, at 246; see § 6023(12)(A) ("The term 'property' means any property . . . , whether real, personal, or mixed, and any present, future, or contingent right, security, or other interest therein, including any leasehold interest"). But that fact does not help the majority's cause. It means that where the "property" confiscated from the plaintiff is a physical thing, liability can attach for trafficking in that thing. It does not mean (as the majority seems to think) that where the "property" confiscated from the plaintiff is an intangible interest, liability can attach for trafficking in

Page Proof Pending Publication

something other than that interest—that is, in the underlying physical thing. Always, according to the statute, trafficking can give rise to liability only when it is in the actual "property which was confiscated."

Second, the docks are not "property which was confiscated by the Cuban Government" because they were not, in fact, confiscated by the Cuban Government; rather, Cuba owned the docks all along. True enough that in 1960, the Cuban Government issued a decree expropriating Havana Docks' assets and sent armed officers to physically occupy the docks. That is how Cuba confiscated Havana Docks' usufructuary concession. But in taking those measures, Cuba did not somehow confiscate *the docks*, because the docks already belonged to Cuba. The majority emphasizes that the Act defines "confiscat[ion]" to include seizing "control of property" and argues that Cuba's actions fit that description because Cuba seized "control" of the docks. See *ante*, at 252–253. But nothing in the Act's definition—more fully stated, "the nationalization, expropriation, or other seizure by the Cuban Government of ownership or control of property, on or after January 1, 1959," § 6023(4)(A)—makes it possible for Cuba to confiscate property it always owned (and Havana Docks never did). The definition's inclusion of seizure of "control" just means that Cuba can "confiscate[ ]" property belonging to someone else by seizing "control" of it, even if ownership does not change hands. So, for example, if Havana Docks had owned the docks and Cuba had taken "control" of them without obtaining title, that would still have counted as "confiscat[ion]." But that is not what happened here—because, again, Havana Docks owned not the docks themselves, but only a time-limited interest in using them.*

Page Proof Pending Publication

*The majority is wrong to say that this view "has the surprising consequence that it is not 'possible' for a landlord to prematurely seize control of 'property it always owned' from a 'renter with a lease.' " *Ante*, at 253, n. 6. A landlord could of course prematurely take control of physical property (say, a house) that he owns but is leasing to a renter. It is just

Finally, the majority's approach ignores basic principles of property law. As every first-year law student learns, "property" is defined by reference not just to spatial boundaries, but also to temporal ones. Cf. *Tahoe-Sierra Preservation Council, Inc.* v. *Tahoe Regional Planning Agency*, 535 U. S. 302, 331–332 (2002) ("An interest in real property is defined by the metes and bounds that describe its geographic dimensions and the term of years that describes the temporal aspect of the owner's interest. . . . Both dimensions must be considered if the interest is to be viewed in its entirety"). Yet the majority inexplicably privileges the spatial. It is obvious that a plaintiff cannot recover under Title III for trafficking in property that falls outside its own property's spatial boundaries. Suppose Havana Docks had a concession of unlimited duration, but only in the red dock—not in the blue dock next to it. Havana Docks could then recover from a defendant who uses the red dock, but not from a defendant who uses the blue dock because that dock lies outside its property interest. And if that is so, why should it be different when the boundary is temporal, rather than spatial? Havana Docks had a concession in the docks until 2004, so it could get compensation from a defendant who used the docks before that date. But just as Havana Docks could not recover from the user of the blue dock, so too it should not recover from someone who used the docks after 2004, when its concession was due to expire. In either case, the trafficking would be in a thing falling outside Havana Docks' property interest—and whether it falls outside the interest's spatial boundaries, or instead its temporal ones, should make no difference to the outcome.

Page Proof Pending Publication

At the end of the day, the Court's interpretation of Title III treats all property interests as if they were perpetual ones. Like the Eleventh Circuit, I "do not believe that Con-

---

that, when the landlord does so, what he confiscates is not the house—which he already owns—but the lease alone, with its scheduled expiration date.

gress, in enacting Title III, meant to convert property interests which were temporally limited at the time of their confiscation into fee simple interests in perpetuity such that the holders of such limited interests could assert trafficking claims through what Buzz Lightyear called 'infinity and beyond.'" 119 F. 4th, at 1287 (quoting Toy Story (Pixar Animation Studios/Walt Disney Pictures 1995)). Instead, I would hold that a plaintiff can recover under Title III only when the defendant traffics in the actual property that was confiscated from the plaintiff. Here, that means Havana Docks' claim should fail, because the cruise lines did not traffic in Havana Docks' time-limited—and long-ago expired—concession. I respectfully dissent.

Page Proof Pending Publication